



Legal guarantees to protect the rights of detainees under modern penal policy

-A comparative study between the Algerian and Tunisian penal systems-

benmessaoud hayet

University of Abdelhamid ibn badis, mostaganem

benmessaoud.hayet27@gmail.com

ilyes mansour

University center of el bayadh

mansour_ilyes@yahoo.com

Abstract

Over recent decades the paradigm of punishment ; has undergone a profound transformation. the deprivation of liberty is no longer viewed solely as a punitive measure per se, lifting its focus toward reform and rehabilitation Concomitant with the evolution of human rights concepts also in alignment with diverse scientific theories –including criminology, penology, and criminal psychology he convicted individual has acquired a distinct legal status within penal institutions.. This status constitutes a fundamental safe guard against potential excesses by penal enforcement authorities. Thus , while liberty is deprived, he inmate retains entitlement to rights inherent in their humanity., such as the right to health family visitation, Alignment and the submission of complaints The ultimate objective of these guarantees is to transform the detainee, upon the completion of their sentence, into an individual who is rehabilitated and capable of reintegrating as a productive member of society.

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1. Introduction

Political In contemporary custodial systems imprisonment plays a principal role in shaping the effectiveness of punitive control . At the same time it represents the critical juncture for preserving the rights and the inherent humanity of the incarcerated individual¹.

Punitive measures within prison institutions act as a tool that can either guide the inmate toward reform and rehabilitation into a constructive member of society, or, conversely, fail to achieve this goal , or conversely.. turn them into a lasting adversary, poised to seek revenge against a society that has isolated, humiliated, and degraded their dignity under the guise of crime prevention.

In the same times ,these international standards provide a legal and ethical framework aimed at safeguarding the dignity and rights humane ²treatment of incarcerated individuals and They serve as a benchmark for national penal systems including those of **Algeria and Tunisia**, guiding the development and implementation of measures that reconcile public safety with respect for fundamental human rights.

Serving as a benchmark for the garde of prisoners these rules highlight ; that any state failing to guarantee them is in breach of its obligations to uphold human rights. Therefore the Human Rights Committee has emphasized that no penitentiary system should be solely punitive instead, it must principally aim at the reform and social reintegration of the prisoner³.

In this context, "**Mohamed Hafez Ghanem**" describes human rights as *(the Essential rights every person possesses simply by being Natural rights that exist Autonomously of nationality, religion... ethnic or national origin, or social and economic status and These are natural rights inherent to all individuals even they belong to any particular society.)*

To present a scientific approach suited to the study of this topic, The core research problematic focuses on the following question:

What rights are recognized for prisoners under the Algerian and Tunisian penal systems, and how do these rights serve as safeguards against the actions of penal authorities?

The central study's issue addresses the question of which rights are afforded to prisoners within the Algerian and Tunisian penal systems, and how these rights function as protections against potential abuses by penal authorities.

Building on the discussion above ..this study of legal guarantees for protecting prisoners rights under prison and social reintegration rules is divided into two main sections , The first section looks at the prisoners individual laws which are organized into three key areas: access to health care and in the same times the right to maintain contact with the outside world also the right to receive funds and file complaints.

The second section examines the rights granted to particular groups of prisoners and divided into three key categories like

prisoners sentenced to death ..., and juvenile offenders.

Section 1 : Subjective Rights of Prisoners.

In modern penal systems imprisonment remains a central mechanism for enforcing sentences (First Requirement), While it inherently deprives individuals of liberty it also carries a responsibility to protect the dignity and rights of prisoners. (Second Requirement), Punishment can either guide inmates toward rehabilitation and social reintegration or if mishandled deepen their sense of injustice and alienation. (Third Requirement).

A-: The Prisoner's Right to Health Care :

The right to health is recognized as a fundamental right for prisoners explicitly guaranteed⁴;by Article 63 of the Algerian Constitution which states: "*The State ensures that every citizen has access to health care...*"

Health care in all its aspects is guaranteed to all prisoners and without any discrimination ,This includes benefiting from hospital services, either inside the prisons infirmary or in any other hospital, to make sure the prisoners physical and mental or psychological safety is respected.

In addition, the prisoners file can be monitored by any requesting authority to check their physical condition and ability to carry out mandatory labor and disciplinary requirements⁵.

To examine the scope of health care its important to consider both preventive

measures (First Branch) and therapeutic measures (Second Branch).

First Branch: Preventive Measures

Preventive measures include the precautions that the prison must take to protect inmates from infectious diseases and prevent their spread to other prisoners ⁶...Eventually , to outsiders through visitors or staff These measures are evident in the prisons physical structure which should allow sunlight and fresh air in all areas and be equipped with proper lighting⁷.

Prisoners must also have access to adequate hygiene facilities, clean clothing, and nutritious meals that support their physical growth and well being.

Similarly... Tunisian law grants prisoners the right to basic hygiene and including shaving supplies and personal care items or ;bathing at least once a week or as advised by the prison doctor, and the option to buy hygiene and grooming products from the prison store , Prisoners are also entitled to receive proper nutrition free of charge⁸.

Second Branch:Therapeutic Methods

This Therapeutic methods cover the steps to be taken when a prisoner becomes ill or suffers an injury , also the Treatment becomes especially important when the illness may have influenced the commission of the crime⁹.

The first step is a thorough biological, mental, and psychological examination of the prisoner, both at the time of entry into the prison and before release. This requires each institution to have a competent

medical administration staffed with qualified specialists.

The second step is to provide suitable treatment recent, which may include transferring the prisoner to an outside hospital when necessary¹⁰.

The final approach consists of submitting regular medical reports to the prison administration, covering¹¹:

- Weekly or bi-weekly health check-ups for each inmate¹².

- Daily or weekly updates on the nutritional conditions in the institution, with suggested corrective measures when needed¹³.

- A-monthly assessment of the condition of the buildings including ventilation and cleanliness in areas used by prisoners along with recommendations for improvements or upgrades¹⁴.

Comparatively In Tunisia, every prisoner has the right to free medical care and medication whether provided inside the prison or if necessary in a hospital following the prison doctors referral. Prisoners are examined by the doctor immediately upon arrival and anyone found to have an infectious disease is placed in isolation in a designated area¹⁵.

As for children accompanying their mothers receive medical checkups and the administration ensures they have access to hygiene, food supplies and along with necessary medical and preventive services. The same procedures are applied to children born while their mothers are serving their sentences¹⁶.

- B : The Prisoner's Right to Contact the Outside World.

Firstly, The Standard Minimum Rules for the Treatment of Prisoners emphasize the importance of maintaining strong connections between inmates and their external environment, particularly with family and relatives. In addition, prisoners should be kept informed about societal developments through available means, helping them maintain psychological wellbeing, respond positively to rehabilitation programs, and facilitate their successful reintegration into society upon release¹⁷.

To clarify this requirement it is important to distinguish between the right to personal visits and face to face communication (First Branch) and the right to maintain correspondence through letters or other approved means (Second Branch).

First Branch: The Right to Visitation and Conversation Visitation and conversation significantly impact the prisoner's psyche, strengthening self-confidence or raising morale and mitigating the severity of isolation imposed by law¹⁸. The Algerian legislator regulated visits in **Articles 66 to 71 and conversation in Article 72 of the Law on the Organization of Prisons and Social Reintegration of Prisoners**¹⁹.

I: The Right to Visitation and the Licensing System

Regular visits from family and friends are essential for sustaining inmates' social bonds and emotional well-being. Research in modern criminology indicates that isolating inmates rarely aids their rehabilitation. Visits may be "remote"

allowing the prisoner to see authorized visitors through barriers or "close" permitting direct unimpeded interaction²⁰.

Articles 66 and 67 of Law No. 04-05 specify the persons entitled to visit the prisoner:

- Ascendants and descendants up to the fourth degree.
- Spouse and dependents.
- Relatives by marriage up to the third degree.

In Tunisia, Prisoners are entitled to maintain contact with their family. Those held in preventive detention²¹ or awaiting a non-final judgment may receive visits from relatives once per week, provided they have a permit from the judicial authority and for prisoners serving a final sentence visits are permitted once a week and during religious holidays, with approval from the Prison and Reformation Administration²².

Also, Outside of these circumstances visits require special authorization ; from the Minister or prison administration, with the exception of the regional governor and authorized judges.

In addition to the exceptions already mentioned the law permits visits by other individuals or humanitarian and charitable organizations when these are considered to support the prisoner's social reintegration. Prisoners also have the right to receive a cleric or religious advisor of their faith, as the freedom to practice religion is guaranteed.

Regarding the issuance of permits, for prisoners serving a final sentence, the permit is granted by the prison director. For temporary detainees, it is issued by the investigating judge, and for appellants, by the Public Prosecution²³.

In this concept, To safeguard the prisoner's financial interests the law permits visits by guardians or financial administrators and such as in the case of juveniles as well as by lawyers or public officers for legitimate purposes²⁴.

That's mean the Prisoners are allowed to meet with their lawyer freely even if they are subject to disciplinary measures ; that restrict other forms of contact and The lawyer has the right to communicate with the accused in a designated room without the presence of a guard.

If the prisoner is a foreign national they may receive visits from their consular representative, subject to reciprocity and internal regulations, Permits are issued by the Ministry of Justice, The proper judge or the Public Prosecution depending on the status of the case. Similarly under Tunisian law ;, this right is granted, with permits issued by the judicial authority for those under preventive detention, or by the Prison Administration for prisoners serving a final sentence. Visits take place in the director's office or in a designated room under the official's supervision²⁵.

Similar to Algerian law, **Tunisian legislation allows children under 13 to visit a parent in prison outside regular visiting hours and without barriers** for humanitarian purposes. Exceptionally, individuals who are not relatives but can

provide positive moral guidance may be allowed to visit in a designated office, under the oversight of the prison director²⁶.

Second: The Right to Communication and Its Methods

Article 72 of Law No. 04-05 addresses remote communication for prisoners, allowing them to use institutional means such as landlines, mobile phones, and internet access.

A prisoner serving a final sentence or an appellant may request a written permit from the prison director to make telephone calls within the country to the persons listed in Article 66/1. When considering such requests, the director takes into account factors such as lack of family visits, distance from the family home, the gravity of the offense, sentence length prior judicial history. Consideration is given to the prisoner's conduct, physical and mental state, and any emergency situations²⁷. Temporary detainees may likewise be authorized to use the telephone by the relevant judicial authority²⁸.

In this concept, The Algerian legislator has established specific conditions for telephone use by prisoners:

- Calls are permitted only once every 15 days, except in emergency situations.
- The maximum duration and frequency of calls are determined by the Director General, based on recommendations from the prison director²⁹.
- Calls must take place during authorized movement periods³⁰.

- Calls to unauthorized numbers are strictly prohibited. The content of calls must not relate to the offense, pending legal cases, or security matters; instead, conversations should focus on family matters, material needs, education, and vocational training³¹.

Violation allows the director to suspend phone use for up to 60 days. Calls are monitored to verify identity and security; the monitoring officer may terminate the call if rules are breached. But In the Tunisian system, this right is not fully enshrined but exists as an emerging practice/pilot in Monastir prison. Phone booths may allow making calls but not receiving them³².

Second Branch: The Right to Correspondence

Correspondence plays a crucial role in maintaining the prisoner's mental well-being and family connections³³, particularly when relatives live far away. This right is regulated by Articles 73 to 75 of the Algerian Prisons Law. Prisoners may exchange correspondence with relatives or other parties, provided certain conditions and limitations are respected:

1. Correspondence must not interfere with rehabilitation efforts. It must not jeopardize prison security.
2. All incoming and outgoing correspondence is subject to the prison director's supervision, despite privacy considerations, in order to ensure safety and to identify psychological needs relevant to rehabilitation programs.

Second Branch: The Right to Correspondence

Maintaining correspondence is essential for a prisoner's mental health and for preserving family ties, especially when family members live far away. In Algeria, Articles 73 to 75 of the Prisons Law govern this right. Prisoners may write to relatives or other authorized persons, under certain conditions:

- Correspondence should not obstruct rehabilitation.
- It must not compromise the security of the institution³⁴.

All letters, whether incoming or outgoing are monitored by the prison director. This supervision, while limiting privacy helps ensure security and allows staff to detect psychological needs that can be addressed through rehabilitation programs³⁵, and Correspondence with a lawyer is considered privileged and cannot be opened or monitored, as long as the envelope clearly identifies it as being to or from a lawyer. The same protections apply to communications with judicial or administrative authorities. Correspondence with a foreign lawyer, however, may be reviewed or regulated at the discretion of the Public Prosecution³⁶.

Proportionally, Tunisian law also grants prisoners the right to correspondence, but it allows the prison administration to open, read, or withhold letters for security reasons. This practice, however, conflicts with the constitutional right to privacy of correspondence (Article 47/2), highlighting a tension between the

deprivation of liberty and the protection of personal privacy.

Third Requirement: The Right to Receive Funds and File Complaints

This requirement covers two main areas: receiving funds and submitting complaints.

First Branch: Receiving Funds

In Algeria prisoners are allowed to receive money via postal or bank transfers, as well as packages containing useful items, under the institutions regulations and supervision (Article 76). The administration has the authority to determine what constitutes a "useful item"; for instance, excessive clothing may be restricted in summer to prevent fire risks³⁷.

Where a detainee possesses jewelry or other valuable personal items, such belongings are entrusted to the institution's accounting registry, which maintains an individual account for each inmate to carefully record and safeguard their property. The prisoner retains the right to manage and dispose of their assets and financial resources, within the limits of legal capacity and subject to authorization by the competent judicial authority³⁸.

The Tunisian legislator mandates that fundholding entry, sent by family, or earned from work be secured in the deposit office, returned upon release. The prisoner may use these funds to purchase items from the prison shop or send them to family³⁹.

Second Branch: Filing Complaints and Grievances

Prisoners whose rights are violated may submit a written complaint to the prison director. The complaint is entered in a

special register for proper investigation⁴⁰ and follow-up. If no response is provided within 10 days, the prisoner may approach the Penalty Application Judge directly. Complaints may also be brought to inspecting officials or judges without the presence of prison staff⁴¹.

Concerning disciplinary measures (Article 83)⁴², prisoners may challenge third-degree sanctions within 48 hours. The grievance is then referred to the Penalty Application Judge, who is required to issue a decision within 5 days. If the grievance involves criminal behavior or poses a security risk, the prison director forwards it to the Public Prosecutor.

Under the Tunisian system (Law 52 of 2001, Article 26), a prisoner has the right to object to a disciplinary measure by the following day. However, filing an objection does not suspend the execution of the measure.

Section 02: Rights of Specific Categories of Prisoners

Algerian law provides special rights to certain categories of prisoners for humanitarian and legal reasons. In this section, we analyze the rights of those sentenced to death (First Requirement), pregnant prisoners (Second Requirement), and juvenile offenders (Third Requirement).

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First Requirement: Rights of Prisoners Sentenced to Death

The Algerian legislator categorizes prisoners sentenced to death under Articles 151–157, covering both those with final sentences and those awaiting final judgment⁴³.

Initially, these inmates are held in high-security units under continuous solitary confinement. After five years, they may be moved to daytime group confinement with 3 to 5 fellow prisoners⁴⁴, and they are entitled to specific periods for rest and recreation.

A key safeguard is that the death sentence is not carried out until a pardon request has been formally rejected by the President. Execution is prohibited for pregnant women, nursing mothers of children under 24 months⁴⁵, and individuals suffering from insanity or serious illness. Temporally, executions are also suspended on national or religious holidays, on Fridays, and during the month for Ramadan⁴⁶.

Tunisian law provides similar safeguards for prisoners sentenced to death. Execution is prohibited on national and religious holidays (Article 292, Civil Procedure Code) and for pregnant women until after childbirth. Presidential approval or pardon is required before carrying out the sentence. Additionally, a death sentence must be confirmed by a majority of four votes in the Criminal Chamber, whereas other sentences require only three.

Second Requirement :Rights of PregnantPrisoners.

The Algerian legislator recognizes guarantees for femaleprisoners, particularlypregnantwomen and nursing mothers (up to 24 months), including search proceduresstrictly by women⁴⁷.

Under Article 50, pregnantprisoners are entitledto:

- **Residence in SpecializedCenters:** Women are housed in centersexclusively for females, regardless of sentence status⁴⁸.
- **Balanced Nutrition:** Considering the biologicalneeds of pregnancy and potential conditions (diabetes, anemia), specificnutritional care ismandated⁴⁹.
- **Continuous Medical Care:** Periodicexaminations (quarterly, then bi-weekly in the final month) are required. High-riskpregnancies are under the medical supervision of the institution'sdoctor⁵⁰.
- **Right to Visit/Conversation withoutBarriers:** To support psychological well-being, barrier free visitswithfamily are allowed⁵¹. Uponbirth, if a guardianisunavailable, the mothermaykeep the childuntilagethree (Article 51/2).

Comparatively in Tunisia allowschildren to stay with incarce rated mother suntilage one, extendable to twoyears Afterward, the childissurrendered to the father or a chosenperson, or the familyjudgeisnotified. And in Algeria, no indication of the mother's incarceration appears in the child's birth certificate or civil status registry⁵².

Third Requirement: Rights of Juvenile Prisoners

Algerian law, in line with international standards, provides specialized facilities for juveniles to emphasize education and guidance⁵³. Juveniles are classified by age, gender, and status, and are generally housed in groups while respecting their dignity⁵⁴. They enjoy balanced nutrition, proper clothing, continuous medical care⁵⁵, daily outdoor activities, direct visits without barriers, and supervised remote communication⁵⁶. Article 125 allows for summer leave of 30 days or exceptional leave for good behavior (10 days every 3 months).

Tunisian legislation provides comparable protections, including individual bedding, full nutrition, clothing, collective dormitories, free medical treatment, educational materials, direct visits, receipt of parcels, and correspondence monitored by a dedicated educator⁵⁷.

Conclusion

Finally ,This study demonstrates that the recent legislation governing prisons in Algeria , embodies a distinctly humanitarian approach..While certain gaps remain the law is largely exemplary in preserving the dignity and fundamental rights of prisoners. The Algerian legislator has taken concrete steps to uphold prisoners' rights by implementing mechanisms that reinforce the Standard Minimum Rules and translate ratified international treaties into tangible protectionsThis commitment is evident in the provision of suitable detention conditions, comprehensive health care—

including both preventive and curative measures—opportunities for maintaining contact with the outside world, and accessible mechanisms for submitting complaints. Furthermore, the law provides additional protections for especially vulnerable groups, such as death row inmates, pregnant women, and juveniles, through specialized procedures and individualized care.

Recommendations:

In light of these findings, several measures are proposed to address remaining gaps and strengthen the penitentiary system:

- Promote specialized research on prison reform or establish cooperative initiatives with countries recognized as leaders in the field, adapting best practices to the specific social and cultural context of Algeria.
- Establish dedicated facilities for high-risk offenders, designed to deliver

effective treatment and rehabilitation tailored to their needs.

- Guarantee that death row inmates have access to comprehensive medical and psychological support consistent with international standards.
- Implement post-release support mechanisms through specialized external services to facilitate reintegration, including employment assistance and material support such as microloans.

¹ -AthmaniaLakhmessi, Penal Policy in Algeria in Light of International Human Rights Instruments, no edition, Dar Houma, Algiers, 2012, p. 277.

²-The United Nations Standard Minimum Rules for the Treatment of Prisoners, as recommended by the First United Nations Congress on the Prevention of Crime and the Treatment of Offenders, held in Geneva in 1955, and approved by the Economic and Social Council.

³AthmaniaLakhmessi, previously cited work, p. 276.-

⁴-Constitution of the People's Democratic Republic of Algeria, Official Gazette, No. 82, dated 30 December 2020.

⁵-Laroum Amar, *The Practical Guide for Inmate Guidance in Light of International and Algerian Legislation and Islamic Sharia*, no edition, Dar Houma, Algiers, 2010, p. 134.

⁶-Fawzia Abdel Sattar, *Principles of Penology*, no edition, Dar Al-Nahda Al-Arabiya, Cairo, 1992, p. 153.

⁷-Ishaq Ibrahim Mansour, *A Concise Treatise on Criminology and Penology*, 4th edition, National Office of University Publications, Algiers, 2009, p. 200.

⁸-Tunisian Prisons between International Standards and Reality, p. 15.

⁹-The same reference, p. 201.

¹⁰-This refers to cases where the illness is of a nature that cannot be treated by the medical administration within the institution; the prisoner must then be transferred under guard for treatment to any other external facility designated for this purpose, such as a hospital or public clinic affiliated with correctional services. The procedures for hospital transfer for treatment were established by the decision dated 23 February 1972 concerning the hospitalization of prisoners. These procedures are as follows: Obtaining authorization from the Minister of Justice based on the opinion of the institution's physician; however, in cases of emergency, the prisoner may be transferred before such authorization is received.

- Notifying the head of the institution to inform the hospital administration as soon as possible prior to the prisoner's transfer, in order to take

the necessary precautions to isolate the prisoner in a secured room ensuring continuous surveillance.

- Providing the competent authority with the necessary information to establish security measures for the prisoner being transferred to the hospital.
- Monitoring the prisoner's health condition by the institution's physician through communication with the hospital doctors responsible for treating the convicted person.
- Applying the same procedures to patients whose health condition requires surgical intervention, with the additional requirement of obtaining prior written consent from the prisoner, unless this proves impossible.

¹¹-Ishaq Ibrahim Mansour, previously cited work, pp. 201–202.

¹²-The same reference, p. 202.

¹³-The same reference, p. 203.

¹⁴-Ishaq Ibrahim Mansour, previously cited work, p. 204.

¹⁵-Article 17 of Law No. 52 of 2001 relating to the Prison System (Official Gazette of the Republic of Tunisia, No. 40, dated 18 May 2001).

¹⁶-Article 13 of the aforementioned law.

¹⁷-Athmania Lakhmessi, previously cited work, pp. 310–311.

¹⁸-Brik El-Taher, *The Philosophy of the Penal System in Algeria and Prisoners' Rights in Light of International Conventions within Algerian Legislation and Implementing Regulatory Texts*, no edition, Dar Al-Houda, Algiers, 2009, p. 100.

¹⁹-Law No. 04-05 dated 27 Dhu al-Hijjah 1425, corresponding to 6 February 2005, concerning the Organization of Prisons and the Social Reintegration of Prisoners (Official Gazette, No. 13, dated 13 February 2005).

²⁰-Athmania Lakhmessi, previously cited work, p. 313.

²¹-Article 33 of Law No. 52 of 2001 provides:

“The spouse, parents and grandparents, children and grandchildren, brothers and sisters, paternal uncle and aunt, maternal uncle and aunt, legal guardian, first-degree in-laws, and any person having a relationship with the prisoner authorized by the prison and rehabilitation administration in cases where the prisoner has no relatives.”

²²-Tunisian Prisons between International Standards and Reality, p. 20.

²³-Article 68 of the aforementioned Law No. 04-05.

²⁴-Laroum Amar, previously cited work, p. 141.

²⁵-Article 36 of Law No. 52 of 2001.

²⁶-The same reference, p. 20.

²⁷-Article 5 of Executive Decree No. 05-430 dated 6 Shawwal 1426, corresponding to 8 November 2005, determining remote communication methods and the modalities of their use by prisoners (Official Gazette, No. 54, dated 13 November 2005).

²⁸-Article 2/5 of the aforementioned Decree No. 05-430.

²⁹-Articles 1/2/6 of the aforementioned Decree No. 05-430.

³⁰-Article 3/6 of the aforementioned Decree No. 05-430.

³¹-Article 7 of the aforementioned Decree No. 05-430.

³²-Prisoner's Guide in Tunisia ap .

³³-Omar Khouri, *Penal Policy in Algerian Law (A Comparative Study)*, 1st edition, Dar Al-Kitab Al-Hadith, Cairo, 2009, p. 360.

³⁴-Article 73 of the aforementioned Law No. 04-05.

³⁵-Medhat Mohamed Abdel Aziz Ibrahim, *Human Rights at the Stage of Penal Enforcement*, 1st edition, Dar Al-Nahda Al-Arabiya, Cairo, 2004, p. 137.

³⁶-Article 74 of the aforementioned Law No. 04-05.

³⁷-Laroum Amar, previously cited work, p. 142.

³⁸-Brik El-Taher, previously cited work, p. 104.

³⁹-Article 28 of Law No. 52 of 2001.

⁴⁰-Laroum Amar, previously cited work, p. 143.

⁴¹-Article 2/3/79 of the aforementioned Law No. 04-05.

⁴²-Third-degree disciplinary sanctions consist of deprivation of visits for a period not exceeding thirty (30) days, excluding lawyer visits, or placement in solitary confinement for a period not exceeding thirty (30) days.

⁴³-Article 151 of the aforementioned Law No. 04-05.

⁴⁴-Articles 152 and 153 of the aforementioned Law No. 04-05.

⁴⁵-Laroum Amar, previously cited work, p. 160.

⁴⁶-Article 3/155 of the aforementioned Law No. 04-05.

⁴⁷-Laroum Amar, previously cited work, p. 161.

⁴⁸-Article 28 of the aforementioned Law No. 04-05.

⁴⁹-Laroum Amar, previously cited work, p. 162.

⁵⁰-Article 28 of the aforementioned Law No. 04-05.

⁵¹-Laroum Amar, previously cited work, p. 163.

⁵²-New Article 9 of Law No. 58 of 2008 dated 4

August 2008 relating to pregnant and breastfeeding incarcerated mothers (Official Gazette of the Republic of Tunisia, No. 40, dated 18 May 2001).

⁵³-Articles 51 and 52 of the aforementioned Law No. 04-05.

⁵⁴-Laroum Amar, p. 163.

⁵⁵-Articles 116 and 117 of the aforementioned Law No. 04-05.

⁵⁶-Article 119 of the aforementioned Law No. 04-05.

⁵⁷-Article 118 of the aforementioned Law No. 04-05.